

13. S-PR-0013383 In Re the Estate of Proctor, Marlene Zieman

Clarification is needed: this is a non-cash estate. The court will not ordinarily approve payment of attorney fees in a non-cash estate where petitioners fail to show how fees are to be paid.

14. S-PR-0013505 In Re the Estate of Reisinger, Kurt Patrick

Petition for final distribution is recommended for approval as prayed.

15. S-PR-0013946 In Re the Estate of Cattern, Anne Elizabeth

Petition to administer estate is recommended for approval as prayed.

16. S-PR-0013950 In Re the Estate of Kirvan, Richard W.

Petition to administer estate is recommended for approval as prayed.

17. S-PR-0013951 In Re the Estate of Watterson, Janelle Elaine

Missing declaration re terms of beneficiary trust. Local Rule 80.2.1.

18. S-PR-0013952 In Re the Estate of Nakashoji, Tara Mariko

Clarification is needed: petitioners incorrectly allege they jointly take 100% of the property. On the allegations of the petition, each parent succeeds individually to a 1/2 interest in decedent's estate. Prob.C. § 6402(b).

19. S-PR-0013953 In Re the Hollands Fam Trust

Petition determine trust property is recommended for approval as prayed.

20. S-PR-0013954 In Re the Estate of de Graaff, John Robinson

Notice of hearing as filed and serves omits ¶ 5 concerning IAEA powers.

21. S-PR-0013956 In Re the Estate of Brady, Michael Wallace

Missing notice of hearing for petition to administer estate. Missing proof of service of notice of hearing. Missing proof of publication of notice of hearing.

Clarification is needed: decedent's name is spelled *Micheal* throughout the petition and the will, but *Michael* on the attached death certificate, without explanation.

Missing required allegations at ¶ 5a(3)–(4) (RDP), (5)–(6) (child(ren)), (7)–(8) (issue of predeceased child(ren)).

Clarification is needed: ¶ 8 identifies two surviving children of decedent; however, ¶¶ 6f & 7b(2)(d) both allege decedent was not survived by issue.

Missing personal representative address (¶ 3h(2)).

Will is not self-proving; proof of will is needed. Witness statements are not a declaration (insufficient under C.C.P. § 2015.5) or affidavit (no jurat).

Note: missing signed Duties form (DE-147). Clerk cannot issue letters until signed Duties form is filed. C.R.C. 7.150.

22. S-PR-0013958 In Re the Estate of Bain, Gregory David

Clarification is needed: petitioner prays for appointment as executor (¶ 1f), but alleges decedent died intestate (¶ 2b(1)). If petitioner seeks to proceed by admission of a will to probate, missing original will (Prob.C. § 8200(a)) and copy of will attached to petition.

Notice of hearing as published states that petitioner seeks admission of a will to probate.

Missing required allegations at ¶ 5a(3)–(4) (RDP), (7)–(8) (issue of predeceased child(ren)), and (b) (step- or foster child(ren)).

Missing request for bond or to waive bond (¶ 1d). If bond waiver is requested, missing waivers of bond by Matthew Bain, Michael Bain, Sarah Bain, David Bain.

Note: missing signed Duties form (DE-147). Clerk cannot issue letters until signed Duties form is filed. C.R.C. 7.150.

23. S-PR-0013960 In Re the Joseph & Doris B Moreno Fam Trust

Appearance is required for hearing on petition to compel trustee account. It is recommended the court order trustee to account from May 2, 2022, through a date no earlier than April 1, 2026.